



Bill Number: H.B. 2875

Bolick Floor Amendment

**Reference to: REGULATORY AFFAIRS AND
GOVERNMENT EFFICIENCY Committee Amendment**

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

- Specifies that a city, town or county is not limited in applying or enforcing applicable regulations to facilities for the operation of an unmanned aircraft or a commercial drone delivery system within two and a half miles of a small hub airport.

BOLICK FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2875

(Reference to REGULATORY AFFAIRS AND GOVERNMENT EFFICIENCY Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute

or previously enacted session law.

[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.

~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.

~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.

<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.

~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.

{{ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS}} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.

{{Orange lowercase underlining in double curly brackets}} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.

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1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 9, chapter 4, article 8, Arizona Revised Statutes,
3 is amended by adding section 9-500.54, to read:

4 9-500.54. Prohibition on unmanned aircraft regulation;
5 exceptions; definitions

6 A. EXCEPT AS OTHERWISE PROVIDED BY LAW, A CITY OR TOWN MAY NOT
7 ENACT OR ADOPT ANY ORDINANCE, POLICY OR RULE THAT RELATES TO THE OWNERSHIP
8 OR OPERATION OF AN UNMANNED AIRCRAFT, UNMANNED AIRCRAFT SYSTEM OR
9 COMMERCIAL DRONE DELIVERY SYSTEM OR OTHERWISE ENGAGE IN REGULATING THE
10 OWNERSHIP OR OPERATION OF AN UNMANNED AIRCRAFT, UNMANNED AIRCRAFT SYSTEM
11 OR COMMERCIAL DRONE DELIVERY SYSTEM. ANY ORDINANCE, POLICY OR RULE THAT
12 VIOLATES THIS SUBSECTION, WHETHER ENACTED OR ADOPTED BY THE CITY OR TOWN
13 BEFORE OR AFTER AUGUST 6, 2016, IS VOID.

14 B. THIS SECTION DOES NOT:

15 1. PROHIBIT A CITY OR TOWN FROM ENACTING OR ADOPTING AN ORDINANCE
16 OR RULE ON ANY OF THE FOLLOWING:

1 (a) OPERATING OR USING A PUBLIC UNMANNED AIRCRAFT THAT IS OWNED BY
2 THE CITY OR TOWN.

3 (b) TAKING OFF OR LANDING A MODEL AIRCRAFT IN A PARK OR PRESERVE
4 THAT IS OWNED BY THE CITY OR TOWN IF EITHER OF THE FOLLOWING APPLIES:

5 (i) THERE ARE OTHER PARKS OR PRESERVES THAT ARE WITHIN THE CITY OR
6 TOWN AND THAT ARE AVAILABLE FOR OPERATING MODEL AIRCRAFT.

7 (ii) THE CITY OR TOWN HAS ONLY ONE PARK OR PRESERVE THAT IS WITHIN
8 THE CITY OR TOWN.

9 (c) LAND USE APPROVALS FOR TAKING OFF, DOCKING AND LANDING A
10 COMMERCIAL DRONE DELIVERY SYSTEM IN AN AREA ZONED FOR RESIDENTIAL USE OR
11 WITHIN A ONE HUNDRED FIFTY-FOOT RADIUS OF THE OUTER BOUNDARY OF THE AREA
12 ZONED FOR RESIDENTIAL USE.

13 (d) TAKING OFF, DOCKING OR LANDING A COMMERCIAL DRONE DELIVERY
14 SYSTEM FROM A CITY OR TOWN OWNED FACILITY OR PROPERTY.

15 2. PROHIBIT A CITY OR TOWN FROM REQUIRING OR ENFORCING EXISTING
16 REGULATIONS THAT ARE NOT EXPLICITLY FOR AN UNMANNED AIRCRAFT, UNMANNED
17 AIRCRAFT SYSTEM OR A COMMERCIAL DRONE DELIVERY SYSTEM.

18 3. ALLOW A CITY OR TOWN TO WITHHOLD ISSUING A PERMIT OR APPROVAL
19 FOR OPERATING, TAKING OFF, DOCKING OR LANDING AN UNMANNED AIRCRAFT,
20 UNMANNED AIRCRAFT SYSTEM OR A COMMERCIAL DRONE DELIVERY SYSTEM IN AN AREA
21 THAT IS NOT ZONED FOR RESIDENTIAL USE.

22 4. LIMIT A CITY'S OR TOWN'S AUTHORITY TO APPLY AND ENFORCE
23 GENERALLY APPLICABLE ZONING, LAND USE, SITE PLAN, BUILDING, FIRE AND
24 PUBLIC SAFETY REGULATIONS TO THE PHYSICAL LOCATION OF FACILITIES THAT ARE
25 USED FOR TAKING OFF, DOCKING OR LANDING AN UNMANNED AIRCRAFT OR COMMERCIAL
26 DRONE DELIVERY SYSTEM WITHIN ~~[ONE MILE]~~ [TWO AND ONE-HALF MILES] OF A
27 ~~[[SMALL,]]~~ [MEDIUM OR] LARGE HUB AIRPORT'S LATITUDE AND LONGITUDE AS
28 RECORDED IN THE FEDERAL AVIATION ADMINISTRATION'S MASTER AIRPORT RECORDS,
29 IF THE REGULATIONS DO NOT GOVERN THE FLIGHT PATH, NAVIGATION OR OPERATION
30 OF THE UNMANNED AIRCRAFT AND DO NOT HAVE THE EFFECT OF PROHIBITING
31 COMMERCIAL DRONE DELIVERY SYSTEMS WITHIN THE JURISDICTION [AND IF THE
32 COMMERCIAL DRONE DELIVERY SYSTEM OPERATOR CONSULTS WITH THE AIRPORT
33 REGARDING THE REGULATIONS].

34 C. FOR THE PURPOSES OF THIS SECTION:

35 1. "COMMERCIAL DRONE DELIVERY SYSTEM" MEANS AN UNMANNED AIRCRAFT
36 SYSTEM ENGAGED IN THE DELIVERING OF GOODS VIA DRONE AND IS APPROVED TO
37 OPERATE FOR THAT PURPOSE BY THE FEDERAL AVIATION ADMINISTRATION.

38 2. "MODEL AIRCRAFT" MEANS AN UNMANNED AIRCRAFT THAT IS:

39 (a) CAPABLE OF SUSTAINED FLIGHT IN THE ATMOSPHERE.

40 (b) FLOWN WITHIN THE VISUAL LINE OF SIGHT OF THE PERSON OPERATING
41 THE MODEL AIRCRAFT.

42 (c) FLOWN FOR HOBBY OR RECREATIONAL PURPOSES.

43 3. "PUBLIC UNMANNED AIRCRAFT" MEANS AN UNMANNED AIRCRAFT OR
44 UNMANNED AIRCRAFT SYSTEM THAT IS OPERATED BY A PUBLIC AGENCY FOR A
45 GOVERNMENT-RELATED PURPOSE.

46 4. "UNMANNED AIRCRAFT" MEANS AN AIRCRAFT, INCLUDING AN AIRCRAFT
47 COMMONLY KNOWN AS A DRONE, THAT IS OPERATED WITHOUT THE POSSIBILITY OF
48 DIRECT HUMAN INTERVENTION FROM WITHIN OR ON THE AIRCRAFT.

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11 THE MODEL AIRCRAFT.

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15 GOVERNMENT-RELATED PURPOSE.

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17 COMMONLY KNOWN AS A DRONE, THAT IS OPERATED WITHOUT THE POSSIBILITY OF
18 DIRECT HUMAN INTERVENTION FROM WITHIN OR ON THE AIRCRAFT.

19 5. "UNMANNED AIRCRAFT SYSTEM" MEANS AN UNMANNED AIRCRAFT AND
20 ASSOCIATED ELEMENTS, INCLUDING ANY COMMUNICATION LINKS AND COMPONENTS THAT
21 CONTROL THE UNMANNED AIRCRAFT.

22 Sec. 3. Section 13-3729, Arizona Revised Statutes, is amended to
23 read:

24 13-3729. Unlawful operation of model or unmanned aircraft;
25 state preemption; classification; definitions

26 A. It is unlawful for a person to operate a model aircraft or a
27 civil unmanned aircraft if the operation:

28 1. Is prohibited by a federal law or regulation that governs
29 aeronautics, including federal aviation administration regulations.

30 2. Interferes with a law enforcement, firefighter or emergency
31 services operation.

32 B. It is unlawful for a person to operate or use an unmanned
33 aircraft or unmanned aircraft system to intentionally photograph or loiter
34 over or near a critical facility in the furtherance of any criminal
35 offense.

36 ~~C. Except as authorized by law, a city, town or county may not~~
37 ~~enact or adopt any ordinance, policy or rule that relates to the ownership~~
38 ~~or operation of an unmanned aircraft or unmanned aircraft system or~~
39 ~~otherwise engage in the regulation of the ownership or operation of an~~
40 ~~unmanned aircraft or an unmanned aircraft system. Any ordinance, policy or~~
41 ~~rule that violates this subsection, whether enacted or adopted by the~~
42 ~~city, town or county before or after August 6, 2016, is void.~~

43 ~~D.~~ C. This section does not:

44 1. Apply to a person or entity that is authorized or allowed by the
45 federal aviation administration to operate or use an unmanned aircraft
46 system if the person's or entity's operation or use complies with the
47 authorization granted to the person or entity or with federal aviation
48 administration rules.

1 ~~2. Prohibit a city, town or county from enacting or adopting~~
2 ~~ordinances or rules on the operation or use of a public unmanned aircraft~~
3 ~~that is owned by the city, town or county.~~
4 ~~3. Prohibit a city, town or county from enacting or adopting~~
5 ~~ordinances or rules that regulate the takeoff or landing of a model~~
6 ~~aircraft in a park or preserve owned by the city, town or county if:~~
7 ~~(a) There are other parks or preserves that are within the city,~~
8 ~~town or county and that are available for model aircraft operation.~~
9 ~~(b) The city, town or county only has one park or preserve that is~~
10 ~~within the city, town or county.~~
11 ~~4.~~ 2. Apply to the operation of an unmanned aircraft, including a
12 public unmanned aircraft, by a first responder as defined in section
13 36-661 while acting in the first responder's official capacity or an
14 emergency worker while engaged in or supporting authorized emergency
15 management activities or performing emergency functions pursuant to title
16 26, chapter 2.
17 ~~E.~~ D. A violation of subsection B of this section is a class 6
18 felony, except that a second or subsequent violation is a class 5 felony.
19 A violation of subsection A of this section is a class 1 misdemeanor.
20 ~~F.~~ E. For the purposes of this section:
21 1. "Civil unmanned aircraft" means an unmanned aircraft or unmanned
22 aircraft system that is operated by a person for any purpose other than
23 strictly for hobby or recreational purposes, including commercial
24 purposes, or in furtherance of or incidental to any business or media
25 service or agency.
26 2. "Commercial purposes" means the use of an unmanned aircraft in
27 return for financial compensation and includes aerial photography, aerial
28 mapping or geospatial imaging.
29 3. "Critical facility" means any of the following:
30 (a) A petroleum or alumina refinery.
31 (b) A petroleum, chemical or rubber production, transportation,
32 storage or processing facility.
33 (c) A chemical manufacturing facility.
34 (d) A water or wastewater treatment facility and water development,
35 distribution or conveyance system, including a dam.
36 (e) An electric generation facility, as defined in section
37 42-14156, and any associated substation or switchyard.
38 (f) An electrical transmission or distribution substation.
39 (g) An electrical transmission line of at least sixty-nine thousand
40 volts.
41 (h) An electronic communication station or tower.
42 (i) An energy control center.
43 (j) A distribution operating center.
44 (k) A facility that transfers or distributes natural gas, including
45 a compressor station, regulator station, city gate station or pressure
46 limiting station or a liquefied natural gas facility or supplier tap
47 facility.
48 (l) Any railroad infrastructure or facility.

- 1 (m) A federal, state, county or municipal court.
2 (n) A public safety or emergency operation facility.
3 (o) A federal, state, county or municipal jail or prison or other
4 facility in which persons are incarcerated.
5 (p) A federal or state military installation or facility.
6 (q) A hospital that receives air ambulance services.
7 4. "Model aircraft" ~~has the same meaning prescribed in section 336~~
8 ~~of the FAA modernization and reform act of 2012 (P.L. 112-95), as amended~~
9 MEANS AN UNMANNED AIRCRAFT THAT IS:
10 (a) CAPABLE OF SUSTAINED FLIGHT IN THE ATMOSPHERE.
11 (b) FLOWN WITHIN THE VISUAL LINE OF SIGHT OF THE PERSON OPERATING
12 THE MODEL AIRCRAFT.
13 (c) FLOWN FOR HOBBY OR RECREATIONAL PURPOSES.
14 5. "Person" means a corporation, firm, partnership, association,
15 individual or organization or any other group acting as a unit.
16 6. "Public unmanned aircraft" means an unmanned aircraft or
17 unmanned aircraft system that is operated by a public agency for a
18 government-related purpose.
19 7. "Unmanned aircraft" means an aircraft, including an aircraft
20 commonly known as a drone, that is operated without the possibility of
21 direct human intervention from within or on the aircraft.
22 8. "Unmanned aircraft system" means an unmanned aircraft and
23 associated elements, including any communication links and components that
24 control the unmanned aircraft.
- 25 Enroll and engross to conform
26 Amend title to conform

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